

Opinion of the Court

Another statute applies to anyone “at least eighteen years of age” who solicits a minor to help avoid detection for certain federal crimes. 21 U. S. C. § 861(a)(2). A third applies to a “parent [or] legal guardian” who allows his child to be used for child pornography. 18 U. S. C. § 2251(b).

We need not decide whether we agree or disagree with the Government’s interpretation of these statutes. In the provisions at issue here, the defendant’s status is the “crucial element” separating innocent from wrongful conduct. *X-Citement Video*, 513 U. S., at 73. But in the statutes cited by the Government, the conduct prohibited—misappropriating classified information, seeking to evade detection for certain federal crimes, and facilitating child pornography—would be wrongful irrespective of the defendant’s status. This difference assures us that the presumption in favor of scienter applies here even assuming the Government is right that these other statutes do not require knowledge of status.

Nor do we believe that Congress would have expected defendants under § 922(g) and § 924(a)(2) to know their own statuses. If the provisions before us were construed to require no knowledge of status, they might well apply to an alien who was brought into the United States unlawfully as a small child and was therefore unaware of his unlawful status. Or these provisions might apply to a person who was convicted of a prior crime but sentenced only to probation, who does not know that the crime is “*punishable* by imprisonment for a term exceeding one year.” § 922(g)(1) (emphasis added); see also *Games-Perez*, 667 F. 3d, at 1138 (defendant held strictly liable regarding his status as a felon even though the trial judge had told him repeatedly—but incorrectly—that he would “leave this courtroom not convicted of a felony”). As we have said, we normally presume that Congress did not intend to impose criminal liability on persons who, due to lack of knowledge, did not have a wrongful mental state. And we doubt that the obligation to prove a defendant’s knowledge of his status will be as burdensome

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as the Government suggests. See *Staples*, 511 U. S., at 615–616, n. 11 (“[K]nowledge can be inferred from circumstantial evidence”).

The Government also argues that whether an alien is “illegally or unlawfully in the United States” is a question of law, not fact, and thus appeals to the well-known maxim that “ignorance of the law” (or a “mistake of law”) is no excuse. *Cheek v. United States*, 498 U. S. 192, 199 (1991).

This maxim, however, normally applies where a defendant has the requisite mental state in respect to the elements of the crime but claims to be “unaware of the existence of a statute proscribing his conduct.” 1 W. LaFare & A. Scott, *Substantive Criminal Law* §5.1(a), p. 575 (1986). In contrast, the maxim does not normally apply where a defendant “has a mistaken impression concerning the legal effect of some collateral matter and that mistake results in his misunderstanding the full significance of his conduct,” thereby negating an element of the offense. *Ibid.*; see also Model Penal Code §2.04, at 27 (a mistake of law is a defense if the mistake negates the “knowledge . . . required to establish a material element of the offense”). Much of the confusion surrounding the ignorance-of-the-law maxim stems from “the failure to distinguish [these] two quite different situations.” LaFare, *Substantive Criminal Law* §5.1(d), at 585.

We applied this distinction in *Liparota*, where we considered a statute that imposed criminal liability on “whoever knowingly uses, transfers, acquires, alters, or possesses” food stamps “in any manner not authorized by the statute or the regulations.” 471 U. S., at 420 (quotation altered). We held that the statute required scienter not only in respect to the defendant’s use of food stamps, but also in respect to whether the food stamps were used in a “manner not authorized by statute or regulations.” *Id.*, at 425, n. 9. We therefore required the Government to prove that the defendant knew that his use of food stamps was unlawful—even though that was a question of law. See *ibid.*

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This case is similar. The defendant’s status as an alien “illegally or unlawfully in the United States” refers to a legal matter, but this legal matter is what the commentators refer to as a “collateral” question of law. A defendant who does not know that he is an alien “illegally or unlawfully in the United States” does not have the guilty state of mind that the statute’s language and purposes require.

The Government finally turns for support to the statutory and legislative history. Congress first enacted a criminal statute prohibiting particular categories of persons from possessing firearms in 1938. See Federal Firearms Act, 52 Stat. 1250. In 1968, Congress added new categories of persons subject to the prohibition. See Omnibus Crime Control and Safe Streets Act, 82 Stat. 197. Then, in 1986, Congress passed the statute at issue here, the Firearms Owners’ Protection Act, 100 Stat. 449, note following 18 U. S. C. § 921, which reorganized the prohibition on firearm possession and added the language providing that only those who violate the prohibition “knowingly” may be held criminally liable.

The Government says that, prior to 1986, the courts had reached a consensus that the law did not require the Government to prove scienter regarding a defendant’s status. And the Government relies on the interpretive canon providing that when particular statutory language has received a settled judicial construction, and Congress subsequently reenacts that “same language,” courts should presume that Congress intended to ratify the judicial consensus. *Helsinn Healthcare S. A. v. Teva Pharmaceuticals USA, Inc.*, 586 U. S. 123, 131 (2019).

Prior to 1986, however, there was no definitive judicial consensus that knowledge of status was not needed. This Court had not considered the matter. As the Government says, most lower courts had concluded that the statute did not require knowledge of status. See, e. g., *United States v. Pruner*, 606 F. 2d 871, 874 (CA9 1979). But the Sixth Circuit had held to the contrary, specifically citing the risk that

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a defendant “may not be aware of the fact” that barred him from possessing a firearm. *United States v. Renner*, 496 F. 2d 922, 926 (1974). And the Fourth Circuit had found that knowledge of a defendant’s status was not needed because the statute “[b]y its terms” did not require knowledge of status. *United States v. Williams*, 588 F. 2d 92 (1978) (*per curiam*).

This last-mentioned circumstance is important. Any pre-1986 consensus involved the statute as it read prior to 1986—without any explicit scienter provision. But Congress in 1986 added a provision clarifying that a defendant could be convicted only if he violated the prohibition on firearm possession “knowingly.” This addition, which would serve no apparent purpose under the Government’s view, makes it all but impossible to draw any inference that Congress intended to ratify a pre-existing consensus when, in 1986, it amended the statute.

The Government points to the House Report on the legislation, which says that the 1986 statute would require the Government to prove “that the defendant’s *conduct* was knowing.” H. R. Rep. No. 99–495, p. 10 (1986) (emphasis added). Although this statement speaks of “conduct” rather than “status,” context suggests that the Report may have meant the former to include the latter. In any event, other statements suggest that the word “knowingly” was intended to apply to both conduct and status. The Senate Report, for example, says that the proposed amendments sought to exclude “individuals who lack all criminal intent and knowledge,” without distinguishing between conduct and status. S. Rep. No. 97–476, p. 15 (1982). And one Senate sponsor of the bill pointed out that the absence of a scienter requirement in the prior statutes had resulted in “severe penalties for unintentional missteps.” 132 Cong. Rec. 9590 (1986) (statement of Sen. Hatch).

Thus, assuming without deciding that statutory or legislative history could overcome the longstanding presumption in favor of scienter, that history here is at best inconclusive.

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* * *

The Government asks us to hold that any error in the jury instructions in this case was harmless. But the lower courts did not address that question. We therefore leave the question for those courts to decide on remand. See *Thacker v. TVA*, 587 U. S. 218, 228 (2019) (citing *Cutter v. Wilkinson*, 544 U. S. 709, 718, n. 7 (2005)).

We conclude that in a prosecution under 18 U. S. C. § 922(g) and § 924(a)(2), the Government must prove both that the defendant knew he possessed a firearm and that he knew he belonged to the relevant category of persons barred from possessing a firearm. We express no view, however, about what precisely the Government must prove to establish a defendant’s knowledge of status in respect to other § 922(g) provisions not at issue here. See *post*, at 250–252 (ALITO, J., dissenting) (discussing other statuses listed in § 922(g) not at issue here). We accordingly reverse the judgment of the Court of Appeals and remand the case for further proceedings consistent with this opinion.

It is so ordered.

APPENDIX

18 U. S. C. § 924(a)(2)

“Whoever knowingly violates subsection (a)(6), (d), (g), (h), (i), (j), or (o) of section 922 shall be fined as provided in this title, imprisoned not more than 10 years, or both.”

18 U. S. C. § 922(g)

“It shall be unlawful for any person—

“(1) who has been convicted in any court of, a crime punishable by imprisonment for a term exceeding one year;

“(2) who is a fugitive from justice;

“(3) who is an unlawful user of or addicted to any controlled substance . . . ;

“(4) who has been adjudicated as a mental defective or who has been committed to a mental institution;

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“(5) who, being an alien—(A) is illegally or unlawfully in the United States; or (B) . . . has been admitted to the United States under a nonimmigrant visa (as that term is defined in section 101(a)(26) of the Immigration and Nationality Act (8 U. S. C. 1101(a)(26)));

“(6) who has been discharged from the Armed Forces under dishonorable conditions;

“(7) who, having been a citizen of the United States, has renounced his citizenship;

“(8) who is subject to a court order that—(A) was issued after a hearing of which such person received actual notice, and at which such person had an opportunity to participate; (B) restrains such person from harassing, stalking, or threatening an intimate partner of such person or child of such intimate partner or person, or engaging in other conduct that would place an intimate partner in reasonable fear of bodily injury to the partner or child; and (C)(i) includes a finding that such person represents a credible threat to the physical safety of such intimate partner or child; or (ii) by its terms explicitly prohibits the use, attempted use, or threatened use of physical force against such intimate partner or child that would reasonably be expected to cause bodily injury; or

“(9) who has been convicted in any court of a misdemeanor crime of domestic violence, to ship or transport in interstate or foreign commerce, or possess in or affecting commerce, any firearm or ammunition; or to receive any firearm or ammunition which has been shipped or transported in interstate or foreign commerce.”

JUSTICE ALITO, with whom JUSTICE THOMAS joins, dissenting.

The Court casually overturns the long-established interpretation of an important criminal statute, 18 U.S.C. §922(g), an interpretation that has been adopted by every

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single Court of Appeals to address the question. That interpretation has been used in thousands of cases for more than 30 years. According to the majority, every one of those cases was flawed. So today's decision is no minor matter. And § 922(g) is no minor provision. It probably does more to combat gun violence than any other federal law. It prohibits the possession of firearms by, among others, convicted felons, mentally ill persons found by a court to present a danger to the community, stalkers, harassers, perpetrators of domestic violence, and illegal aliens.

Today's decision will make it significantly harder to convict persons falling into some of these categories, and the decision will create a mountain of problems with respect to the thousands of prisoners currently serving terms for § 922(g) convictions. Applications for relief by federal prisoners sentenced under § 922(g) will swamp the lower courts. A great many convictions will be subject to challenge, threatening the release or retrial of dangerous individuals whose cases fall outside the bounds of harmless-error review. See *ante*, at 237.

If today's decision were compelled by the text of § 922(g) or by some other clear indication of congressional intent, what the majority has done would be understandable. We must enforce the laws enacted by Congress even if we think that doing so will bring about unfortunate results. But that is not the situation in this case. There is no sound basis for today's decision. Indeed, there was no good reason for us to take this case in the first place. No conflict existed in the decisions of the lower courts, and there is no evidence that the established interpretation of § 922(g) had worked any serious injustice.

The push for us to grant review was based on the superficially appealing but ultimately fallacious argument that the text of § 922(g) dictates the interpretation that the majority now reaches. See Pet. for Cert. 8. Ironically, today's deci-

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sion, while casting aside the established interpretation of § 922(g), does not claim that the text of that provision is itself dispositive. Instead, what the majority relies on, in the end, is its own guess about *congressional intent*. And the intent that the majority attributes to Congress is one that Congress almost certainly did not harbor.

I

The majority provides a bowdlerized version of the facts of this case and thus obscures the triviality of this petitioner's claim. The majority wants readers to have in mind an entirely imaginary case, a heartless prosecution of “an alien who was brought into the United States unlawfully as a small child and was therefore unaware of his unlawful status.” *Ante*, at 233. Such a defendant would indeed warrant sympathy, but that is not petitioner, and no one has called to our attention any real case like the one the majority conjures up.

Here is what really happened. Petitioner, a citizen of the United Arab Emirates, entered this country on a visa that allowed him to stay here lawfully only so long as he remained a full-time student. 888 F. 3d 1138, 1140 (CA11 2018). He enrolled at the Florida Institute of Technology, but he withdrew from or failed all of his classes and was dismissed. Brief for Petitioner 4–5. After he was conditionally readmitted, he failed all but one of his courses. His enrollment was then terminated, and he did not appeal. The school sent him e-mails informing him that he was no longer enrolled and that, unless he was admitted elsewhere, his status as a lawful alien would be terminated. 888 F. 3d, at 1140–1141. Petitioner's response was to move to a hotel and frequent a firing range. Each evening he checked into the hotel and always demanded a room on the eighth floor facing the airport. Each morning he checked out and paid his bill with cash, spending a total of more than \$11,000. This went on

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for 53 days. Brief for United States 4. A hotel employee told the FBI that petitioner claimed to have weapons in his room. Arrested and charged under § 922(g) for possession of a firearm by an illegal alien, petitioner claimed at trial that the Government had to prove beyond a reasonable doubt that he actually knew that his lawful status had been terminated. Following what was then the universal and long-established interpretation of § 922(g), the District Court rejected this argument, and a jury found him guilty. 888 F. 3d, at 1141. The Eleventh Circuit affirmed. *Id.*, at 1140. Out of the more than 8,000 petitions for a writ of certiorari that we expected to receive this Term, we chose to grant this one to see if petitioner had been deprived of the right to have a jury decide whether, in his heart of hearts, he really knew that he could not lawfully remain in the United States on a student visa when he most certainly was no longer a student.

II

A

Petitioner claims that the texts of § 922(g) and a companion provision, 18 U. S. C. § 924(a)(2), dictate a decision in his favor, and I therefore begin with the text of those two provisions. Section 924(a)(2) provides in relevant part as follows:

“Whoever *knowingly* violates subsection . . . (g) of section 922 shall be fined as provided in this title, imprisoned for not more than 10 years, or both.” (Emphasis added.)

Section 922(g), in turn, makes it unlawful for nine categories of persons to engage in certain interstate-commerce-related conduct involving firearms. These categories consist of: (1) convicted felons; (2) fugitives from justice; (3) users of illegal drugs or addicts; (4) persons found to have very serious mental problems; (5) illegal aliens; (6) individu-

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als who were dishonorably discharged from the Armed Forces; (7) persons who renounced U. S. citizenship; (8) stalkers, harassers, and abusers subject to restraining orders; and (9) persons convicted of a misdemeanor crime of domestic violence.¹ Persons falling into these categories are forbid-

¹Title 18 U. S. C. § 922(g) provides as follows:

“It shall be unlawful for any person—

“(1) who has been convicted in any court of, a crime punishable by imprisonment for a term exceeding one year;

“(2) who is a fugitive from justice;

“(3) who is an unlawful user of or addicted to any controlled substance (as defined in section 102 of the Controlled Substances Act (21 U. S. C. 802));

“(4) who has been adjudicated as a mental defective or who has been committed to a mental institution;

“(5) who, being an alien—

“(A) is illegally or unlawfully in the United States; or

“(B) except as provided in subsection (y)(2), has been admitted to the United States under a nonimmigrant visa (as that term is defined in section 101(a)(26) of the Immigration and Nationality Act (8 U. S. C. 1101(a)(26)));

“(6) who has been discharged from the Armed Forces under dishonorable conditions;

“(7) who, having been a citizen of the United States, has renounced his citizenship;

“(8) who is subject to a court order that—

“(A) was issued after a hearing of which such person received actual notice, and at which such person had an opportunity to participate;

“(B) restrains such person from harassing, stalking, or threatening an intimate partner of such person or child of such intimate partner or person, or engaging in other conduct that would place an intimate partner in reasonable fear of bodily injury to the partner or child; and

“(C)(i) includes a finding that such person represents a credible threat to the physical safety of such intimate partner or child; or

“(ii) by its terms explicitly prohibits the use, attempted use, or threatened use of physical force against such intimate partner or child that would reasonably be expected to cause bodily injury; or

“(9) who has been convicted in any court of a misdemeanor crime of domestic violence,

“to ship or transport in interstate or foreign commerce, or possess in or affecting commerce, any firearm or ammunition; or to receive any firearm

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den, as relevant here, to “possess in or affecting commerce, any firearm.”

Petitioner argues that, when §§ 924(a)(2) and 922(g) are put together, they unambiguously show that a defendant must actually know that he falls into one of the nine enumerated categories. But this purportedly textual argument requires some moves that cannot be justified on the basis of the statutory text. Petitioner’s argument tries to hide those moves in the manner of a sleight-of-hand artist at a carnival.

Petitioner begins by extracting the term “knowingly” from § 924(a)(2). He then transplants it into the beginning of § 922(g), ignores the extraordinarily awkward prose that this surgery produces, and proclaims that because “knowingly” appears at the beginning of the enumeration of the elements of the § 922(g) offense, we must assume that it modifies the first of those elements, *i. e.*, being a convicted felon, illegal alien, etc. To conclude otherwise, he contends, is to commit the sin of having the term “knowingly” leap over that element and then land conveniently in front of the second. Pet. for Cert. 8.

But petitioner’s reading is guilty of the very sort of leaping that it condemns—and then some. It has “knowingly” performed a jump of Olympian proportions, taking off from § 924(a)(2), sailing backward over more than 9,000 words in the U. S. Code, and then landing—conveniently—at the beginning of the enumeration of the elements of the § 922(g) offense. Of course, there is no logical reason why this jump has to land at that particular point in § 922(g). That is petitioner’s first sleight of hand. But there is another.

What petitioner and those who have pressed this leaping argument want § 922(g) to say is essentially this: Whoever knowingly is an illegal alien and possesses a firearm shall be fined and/or imprisoned if his possession of the gun was in

or ammunition which has been shipped or transported in interstate or foreign commerce.”

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or affecting interstate commerce. If we had before us a provision that reads like that, there would be a strong textual argument that a defendant's status as an illegal alien must actually be known to him. That is essentially what we held in *Flores-Figueroa v. United States*, 556 U. S. 646, 652 (2009). But when the term “knowingly” is excised from § 924(a)(2) and inserted at the beginning of § 922(g), what we get is something quite different:

Whoever knowingly . . . It is unlawful for any person . . . who, being an alien—is illegally or unlawfully in the United States . . . to possess in or affecting commerce, any firearm or ammunition

Congress did not—and certainly would not—enact a statute that reads like that. To convert this garbled conglomeration into intelligible prose, editing is obviously needed, and the editing process would compel the editor to make decisions with substantive implications that could hardly go unnoticed. Here is a way of amalgamating §§ 924(a)(1) and 922(g) that minimizes the changes in the language of the two provisions:

Whoever knowingly . . . It is unlawful for any person . . . who, being an alien—is illegally or unlawfully in the United States . . . **and** possesses in or affecting commerce, any firearm or ammunition . . . [commits a crime punishable by . . .]

The most natural reading of this version is that the defendant must know only that he is an alien, not that his presence in the country is illegal or unlawful. And under this version, it is not even clear that the alien's possession of the firearm or ammunition must be knowing—even though everyone agrees that this is required.

Here are two other possibilities that require more changes. The first is this:

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Whoever knowingly . . . It is unlawful for any person . . . who, being an alien **who**—is illegally or unlawfully in the United States . . . to possess~~es~~ in or affecting commerce, any firearm or ammunition . . . [commits a crime punishable by]

The second, which differs from the first only in that the clause “who is illegally or unlawfully in the United States” is set off by commas, is this:

Whoever knowingly . . . It is unlawful for any person . . . who, being an alien, **who**—is illegally or unlawfully in the United States, . . . to possess~~es~~ in or affecting commerce, any firearm or ammunition . . . [commits a crime punishable by]

A strict grammarian, noting that the clause “who is legally or unlawfully in the United States” is restrictive in the first of these versions and nonrestrictive in the second, might interpret the first to favor petitioner and the second to favor the Government. And under both of these versions, it is again unclear whether a defendant’s possession of the firearm or ammunition must be knowing.

All of the versions discussed so far place the term “knowingly” at the beginning of our transformed version of § 922(g), but as noted, there is no reason why this term’s leap from § 924(a)(2) must land at that point. So our new version of § 922(g) could just as logically read like this:

Whoever . . . It is unlawful for any person . . . who, being an alien **who**—is illegally or unlawfully in the United States . . . to **knowingly** possess~~es~~ in or affecting commerce, any firearm or ammunition . . . [commits a crime punishable by]

That would make it clear that the long-established interpretation of § 922(g) is correct.

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What these possibilities show is that any attempt to combine the relevant language from § 924(a)(2) with the language of § 922(g) necessarily entails significant choices that are not dictated by the text of those provisions. So the purportedly textualist argument that we were sold at the certiorari stage comes down to this: If §§ 922(g) and 924(a)(2) are arbitrarily combined in the way that petitioner prefers, then, presto chango, they support petitioner's interpretation. What a magic trick!

B

The truth behind the illusion is that the terms used in §§ 924(a)(2) and 922(g), when read in accordance with their use in ordinary speech, can easily be interpreted to treat the question of *mens rea* in at least four different ways.

First, the language of §§ 924(a)(2) and 922(g) can be read to require that a defendant know that his conduct is a violation of § 922(g). In ordinary speech, to knowingly violate a rule may mean to violate a known rule. ("He was told it is forbidden to smoke in the restroom of a plane, but he knowingly did so.") Neither petitioner nor the Government suggests that this is the proper interpretation of §§ 922(g) and 924(a)(2), but their reason is not based on the plain or ordinary meaning of the statutory text. Instead, it rests on an inference about congressional intent that, in turn, is based on a drafting convention, namely, that where Congress wants to require proof that a criminal defendant knew his conduct was illegal, it specifies that the violation must be "willful." In ordinary speech, "willfulness" does not require or even suggest knowledge of illegality. See Webster's Third New International Dictionary 2617 (1976). But we have construed the term as used in statutes to mean the "intentional violation of a known legal duty." *United States v. Bishop*, 412 U. S. 346, 360 (1973). Thus, the pointed use of the term "knowingly," as opposed to "willfully," in § 922(g), provides a ground to infer that Congress did not mean to require knowledge of illegality.

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Second, a “knowing” violation could require knowledge of *every* element that makes up the offense. As applied to § 922(g), that would mean that the Government would have to prove that the defendant: (1) knew that he is an alien “illegally or unlawfully in the United States,” (2) knew that the thing he “possess[ed]” was “a firearm or ammunition,” and (3) knew that what he did was “in or affecting commerce.” But again, the parties (and the majority) disclaim this reading because, they contend, the *mens rea* requirement does not apply to the interstate-commerce element of the offense. To reach this conclusion, however, neither the parties nor the majority relies on the text. How could they? If positioning the term “knowingly” at the beginning of a list of elements (or incorporating it through a separate provision) means that it applies to every element, then it would have to apply to the interstate-commerce element just like the others.

Once again, the conclusion that “knowingly” does not apply to the interstate-commerce element is not based on any rule of English usage but on yet another inference about congressional intent: that the question whether a defendant knew that his act of possessing a gun or ammunition was “in or affecting commerce” is simply not the sort of question that Congress wanted a jury to decide. The conclusion is sound, see, e. g., *Luna Torres v. Lynch*, 578 U. S. 452, 467 (2016). But the inference that this is not what Congress intended is in no way compelled by the text of § 922(g), which simply includes the jurisdictional element among the other elements of the crime with no textual indication that Congress meant for it to be treated differently.²

² Indeed, the jurisdictional element is listed before the firearm element of the offense, to which everyone agrees the *mens rea* requirement applies. The text alone does not explain why the word “knowingly” would “leapfro[g]” over the middle element, which is perhaps why the majority does not adopt the novel “grammatical gravity” canon. *United States v. Games-Perez*, 667 F. 3d 1136, 1143 (CA10 2012) (Gorsuch, J., concurring in judgment); see also Tr. of Oral Arg. 32.

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Third, a “knowing” violation could require knowledge of both the conduct and status elements of the offense (but not the jurisdictional element). This is the reading that petitioner advocates and that the majority adopts. Yet again, this interpretation is not based on the text of the provisions but on two other factors: the inference about congressional intent just discussed and the assumption that Congress, had it incorporated the term “knowingly” into § 922(g), would have placed it at the beginning of that provision. As I have explained, there is no textual basis for that assumption.

Fourth, a “knowing” violation could require knowledge of the conduct element—the possession of a firearm or ammunition—but not the others. Putting aside the question of the jurisdictional element, that is how one would naturally read § 922(g) if Congress had incorporated the knowledge requirement into § 922(g) *after* the status element and *just before* the conduct element. Of course, Congress did not do that—but neither did it place “knowingly” at the beginning of the list of elements.

As these competing alternatives show, the statutory text alone does not tell us with any degree of certainty the particular elements of § 922(g) to which the term “knowingly” applies. And once it is recognized that the statutory text does not specify the *mens rea* applicable to § 922(g)’s status element, there is no reason to assume that what Congress wanted was either a **very high** *mens rea* requirement (actual knowledge) or no *mens rea* at all. See *infra*, at 259. However, if we limit ourselves to those options, as the parties and the majority assume we must, the latter is more likely.

C

1

That is so for at least six reasons. *First*, in no prior case have we inferred that Congress intended to impose a *mens rea* requirement on an element that concerns the defendant’s own status. Nor has petitioner pointed to any statute with

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text that plainly evinces such a congressional intent. Instead, in instances in which Congress has expressly incorporated a *mens rea* requirement into a provision with an element involving the defendant's status, it has placed the *mens rea* requirement *after* the status element. For example, 18 U. S. C. § 2251(b) punishes any "person having custody or control of a minor who knowingly permits such minor to engage in . . . sexually explicit conduct for the purpose of producing any visual depiction of such conduct." To show a violation, the Government need not prove that the defendant knew that the person under his custody or control was a minor. Even where the issue of a defendant's status is open and shut, Congress has taken pains to place the *mens rea* requirement so that it clearly does not apply to the status element. Thus, 18 U. S. C. § 1924(a) punishes an "officer, employee, contractor, or consultant of the United States [who] knowingly removes [classified] documents or materials without authority." And 21 U. S. C. § 861(a) prohibits "any person at least eighteen years of age [from] knowingly and intentionally . . . receiv[ing] a controlled substance from a person under 18 years of age." So what the majority has done in this case is groundbreaking.

Second, there are sound reasons for treating § 922(g)'s status element like its jurisdictional element. The parties agree that federal criminal statutes presumptively do not require proof that an accused knew that his conduct satisfied a jurisdictional element, and our cases support this proposition. See *Luna Torres*, 578 U. S. 452; *United States v. Yermian*, 468 U. S. 63 (1984); *United States v. Feola*, 420 U. S. 671 (1975). We have never provided a comprehensive explanation of the basis for this presumption, but our decision in *Feola*, which concerned the offense of assaulting a federal officer in violation of 18 U. S. C. § 111, is instructive. Agreeing with the interpretation that had been adopted with "practical unanimity" by the courts of appeals, *Feola* held that an accused need not be shown to have been aware of his

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victim's status. We inferred that this is what the statute means because requiring proof of knowledge would undermine the statute's dual objectives of protecting federal officers and preventing the obstruction of law enforcement. 420 U. S., at 677, 679.

A similar consideration appears to provide the basis for the conclusion that a § 922(g) defendant need not know that his possession of a gun is “in or affecting commerce.” Whether or not conduct satisfies that requirement involves a complicated legal question; requiring proof of such knowledge would threaten to effectively exempt almost everyone but students of constitutional law from the statute's reach; and that would obviously defeat the statute's objectives.

The reason for the rule exempting knowledge of jurisdictional elements supports the conclusion that knowledge of § 922(g)'s status element is also not required. Whether a defendant falls into one of the § 922(g) categories often involves complicated legal issues, and demanding proof that a defendant understood those issues would seriously undermine the statute's goals.

Take the category defined in § 922(g)(4), which applies to a person who has been “adjudicated as a mental defective,” a term that is defined by regulation to mean

“(a) A determination by a court, board, commission, or other lawful authority that a person, as a result of marked subnormal intelligence, or mental illness, incompetency, condition, or disease:

“(1) Is a danger to himself or to others; or

“(2) Lacks the mental capacity to contract or manage his own affairs.” 27 CFR § 478.11 (2019).

Congress thought that persons who fall into this category lack the intellectual capacity to possess firearms safely. Is it likely that Congress wanted § 922(g) to apply only to those individuals who nevertheless have the capacity to know that

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they fall within the complicated definition set out in the regulation? If a person has been found by a court to present a “danger . . . to others” due to mental illness or incompetency, should he escape the reach of § 922(g) because he does not know that a court has so found?

Or consider the category defined by § 922(g)(8), which applies to a person

“who is subject to a court order that—

“(A) was issued after a hearing of which such person received actual notice, and at which such person had an opportunity to participate;

“(B) restrains such person from harassing, stalking, or threatening an intimate partner of such person or child of such intimate partner or person, or engaging in other conduct that would place an intimate partner in reasonable fear of bodily injury to the partner or child; and

“(C)(i) includes a finding that such person represents a credible threat to the physical safety of such intimate partner or child; or

“(ii) by its terms explicitly prohibits the use, attempted use, or threatened use of physical force against such intimate partner or child that would reasonably be expected to cause bodily injury”

Under this reticulated provision, does the majority’s interpretation require proof beyond a reasonable doubt that the defendant knew, when he possessed the gun or ammunition, (1) that his restraining order had been issued after a hearing, (2) that he had received actual notice of the hearing, (3) that he had been given an opportunity to participate at the hearing, (4) that the order covered harassing, stalking, or threatening, (5) that the person protected by the order qualified as his “intimate partner,” and (6) that the order explicitly prohibited the “use, attempted use, or threatened use of physical force”? Did Congress want a person who terror-

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ized an intimate partner to escape conviction under § 922(g) by convincing a jury that he was so blinded by alcohol, drugs, or sheer rage that he did not actually *know* some of these facts when he acquired a gun?

What about the category defined by § 922(g)(9), which covers a person “who has been convicted in any court of a misdemeanor crime of domestic violence”? Did Congress want this provision to apply only to those abusers who actually know that an offense for which they were convicted falls within the complicated definition of a “crime of domestic violence”? The Members of this Court have been unable to agree on the meaning of that concept. Is it limited to offenses that have an element requiring proof that the abuser had a domestic relationship with the victim? In *United States v. Hayes*, 555 U.S. 415 (2009), the majority said no, but THE CHIEF JUSTICE and Justice Scalia disagreed. Can a conviction qualify if the offense required only recklessness? In *Voisine v. United States*, 579 U.S. 686 (2016), the Court said yes, but JUSTICE THOMAS and JUSTICE SOTOMAYOR dissented. Does this provision apply if only slight force is required for conviction by the misdemeanor provision under which the defendant was convicted? Again, the Members of the Court have disagreed. Compare *United States v. Castleman*, 572 U.S. 157, 162 (2014) (opinion of the Court), with *id.*, at 175 (Scalia, J., concurring in part and concurring in judgment). If the Justices of this Court, after briefing, argument, and careful study, disagree about the meaning of a “crime of domestic violence,” would the majority nevertheless require the Government to prove at trial that the defendant himself actually knew that his abuse conviction qualified? Can this be what Congress had in mind when it added this category in 1996 to combat domestic violence?

Serious problems will also result from requiring proof that an alien *actually knew*—not should have known or even strongly suspected but *actually knew*—that his continued presence in the country was illegal. Consider a variation on